Course Provider Handbook

Instructions for applying to offer California Department of Real Estate approved Statutory/Pre-License courses and Continuing Education courses

Revised January 2026

Purpose-

This handbook is intended for individuals or private schools who are seeking approval from the Department of Real Estate (DRE) to offer Statutory/Pre-License courses to individuals wishing to qualify for the real estate broker or salesperson license exams and/or to offer Continuing Education (CE) courses to California real estate licensees for the purposes of renewing their license.

DRE approves individual courses only and not course providers; however, course providers are assigned Pre-licensing/Statutory and/or CE sponsor identification numbers upon approval of their course(s) and each course is assigned an individual approval number.

Regulations-

The Regulations of the Real Estate Commissioner Article 24 governs the Statutory/Pre-License courses and Article 25 governs the CE courses approved by DRE. These regulations can be found online at DRE's website and within DRE forms titled, *Regulation Excerpts (Private Vocational Schools) (RE 307)* and *Continuing Education Regulations (RE 312)*.

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Statutory/Pre-License Courses

General Information

Statutory/Pre-License Courses offered by private vocational schools are defined as: *The simultaneous instruction of two or more students in one of the courses enumerated in sections 10153.2, 10153.3 or 10153.4 of the Code constitutes a "private vocational school" as that term is used in section 10153.5.* These course offerings must be equivalent in quality to real estate courses offered by colleges and universities accredited by the Western Association of Schools and Colleges or by any other regional accrediting body recognized by the US Department of Education.

Effective January 1, 2024, pursuant to Senate Bill 1495, all real estate practice courses must contain the following course content:

- A component on implicit bias, including education regarding the impact of implicit bias, explicit bias, and systemic bias on consumers, the historical and social impacts of those biases, and actionable steps students can take to recognize and address their own implicit biases.
- A component on federal and state fair housing laws as those laws apply to the practice of real estate. The fair housing component shall include an interactive participatory component, during which the applicant shall role play as both a consumer and real estate professional.

Live/Classroom Courses-

- Must provide at least 45 hours of classroom instruction (each hour no less than 50 minutes in duration).
- Must provide instructors, instructional material and classroom facilities adequate to achieve the objective of the course offered.
- Must have instructor(s) whose credentials are issued by the Board of Governors of the California Community Colleges or by a comparable California teacher-credentialing agency or meet the qualifications established in Sections 53400 et seq. of Title 5. The commissioner may approve instructors who in his or her judgment meet the qualifications, or who otherwise evidence their teaching qualifications by education or experience or a combination of the two.
- Must provide a final examination administered and supervised by the school in a classroom setting.
- Must, within 15 days of a student's successful completion of the course, deliver a course completion certificate to the student that contains at minimum, the following information*:
    - Department of Real Estate course approval number
    - Name of student
    - Course title, type and credit hours. *Real state practice course certificates should indicate that the course is "Compliant with SB 1495"*
    - Dates of course registration and completion
    - School name, address and telephone number
    - Print name and signature of the verifier
    - Certifying Statement- *Attended a minimum of 90% of the clock hours and successfully completed the live course and passed the final exam with a passing score of 60% or better.*
    - **The school may include additional information in this document as it deems necessary*

- Must notify each student that an evaluation form is available on the Department's website for evaluation of courses and instructors.
- Must maintain records for each student sufficient to allow for the preparation of a duplicate certificate upon request by a student. This means as long as the school is in business, the school must furnish a certificate to the student upon request.

Correspondence Courses (Including courses presented via the internet or mobile device app)

- Must have at least 15 separate lesson assignments.
- Must provide instructors and instructional material adequate to achieve the objective of the course offered. (Instructors need to be available for students even if the course is self-guided).
- Must have instructor(s) whose credentials are issued by the Board of Governors of the California Community Colleges or by a comparable California teacher-credentialing agency or meet the qualifications established in Sections 53400 et seq. of Title 5. The commissioner may approve instructors who in his or her judgment meet the qualifications, or who otherwise evidence their teaching qualifications by education or experience or a combination of the two.
- Must provide a final examination administered and supervised by an instructor/proctor designated by the school and the school shall send the final examination materials to the proctor and the completed final examination shall be returned to the school by proctor. The students are to never have the final exams sent to them nor send in the final exam to the school. ONLY the proctor should handle this task.
- Must, within 15 days of a student's successful completion of the course, deliver a course completion certificate to the student that contains at a minimum, the following information*:
    - Department of Real Estate course approval number
    - Name of student
    - Course title and hours. *Real state practice course certificates should indicate that the course is "Compliant with SB 1495"*
    - Dates of course registration and completion
    - School name, address and telephone number
    - Print name and signature of the verifier
    - Certifying Statement – *Successfully completed the correspondence/home study course and passed the final exam with a passing score of 60% or better.*
    - **The school may include such additional information in this document as it deems necessary*

- Must notify each student that an evaluation form is available on the Department's website for evaluation of courses and instructors.
- Must maintain records for each student sufficient to allow for the preparation of a duplicate certificate upon request by a student. This means as long as the school is in business, the school must furnish a certificate to the student upon request.

APPLYING FOR APPROVAL OF A STATUTORY/PRE-LICENSE COURSE

The following items are required when requesting approval for a Statutory/Pre-License Course-

- Completed Pre-License Course Approval Application (RE 306).
- Please keep in mind that fees are subject to change, so be sure to check DRE's website prior to submitting the course application.
- Corporation Documents, if applicable, as filed with the Secretary of State.
- Fictitious Business Name Statement (FBNS), if applicable, as filed with the County Clerk's office.
- Consent to Service of Process (RE 304) if the school is out of state.
- Copies of all student instructional materials and copyright authorizations as necessary.
- Textbook Certification letter from a college/university professor.
- Pre-License Instructor Certification (RE 336) with supporting documentation.
- General Information Page (RE 313 serves as a template).
- Timed Course Outline.
- Student Final Exam Instructions.
- Exam Proctor/monitor Instructions.
- Student Version of the Final Exam.
- Instructor Version of the Final Exam along with corresponding answer key.
- Student AND Regulator log-in and password for courses/final exams offered online/mobile app.
- Pre-License Course Completion Certificate (RE 311 serves as a template).

Pre-License Course Application (RE 306)

Please complete the application in full and confirm that the information on this form does not conflict with other information in the packet. Use the information below to help guide in the complete of the form and the packet. **Please note**- all signatures must be original or eSignatures. Digital or rubber-stamp signatures will not be accepted.

APPLICATION STEP-BY-STEP

Page 1:

1A. Enter the Pre-License Sponsor number if known.

1B. Enter the Name of the Sponsor or School exactly as it will be presented to students (unless using a FBNS).

2. Enter any other names used by the Sponsor/School (FBNS) (if any).

3. Enter the phone number of the school where students/consumers can contact the sponsor/school.

4. Enter the address of the sponsor/school classroom facility. (If applicable).

5. Enter the mailing address of the school where students/consumers can contact the sponsor/school.

6. Enter the email address where students/consumers can contact the sponsor/school.

7. Enter the website address for the sponsor/school. (If applicable).

8. Indicate if the sponsor/school is approved by the Bureau for Private Postsecondary Education (BPPE). Please visit the BPPE website (www.bppe.ca.gov) for more information on whether your school is required to be approved by the BPPE. If your school is exempt, you must explain why the sponsor/school is exempt (i.e. Accreditation by Western Association of Schools and Colleges) or enter the code section by which the sponsor/school is exempt (i.e. Education Code 94874).

9. Select the Type of Ownership for this sponsor/school. Please submit the appropriate documentation such as: endorsed, filed *Articles of Incorporation* or *Certificate of Registration* filed with the CA Secretary of State (SOS); or if out of state, include *Certificate of Qualification* or *Certificate of Status*.

10. Indicate if the sponsor/school is using a Fictitious Business Name (FBNS). If yes, the FBNS name needs be indicated and a copy of the FBNS filed with the county recorder must be submitted.

11. Enter the Primary and Secondary contact information for those who are responsible for the sponsor/school. Contact(s) original signature is required.

Page 2:

12. Enter the course title (remember that the course names are required to be one of the following pursuant to B&P code 10153.2 and 10153.3:

- Real Estate Practice
- Legal Aspects of Real Estate
- Real Estate Appraisal
- Real Estate Financing
- Real Estate Economics
- Real Estate Accounting
- Business Law
- Escrows
- Real Estate Principles
- Property Management
- Real Estate Office Administration
- Mortgage Loan Brokering and Lending
- Computer Applications in Real Estate
- Common Interest Developments
- Advanced Real Estate Appraisal
- Advanced Real Estate Finance
- Advanced Legal Aspects of Real Estate

13. Enter all language(s) that will be used to teach the course.

14. Enter the total number of instruction hours with a minimum of 45 hours. (Each hour no less than 50 minutes in duration).

15A. Select if the course will be Live or Correspondence. It cannot be both. If both formats are offered, a separate application packet, including a fee, is needed for both types and two separate approvals will be issued. (*All courses which are not presented live are considered correspondence course including online and mobile device app courses.*)

15B. Answer whether the final exam for this course will be delivered in person or via the internet/mobile device app. If yes, indicate what portions of the course are affected.

16. Enter all student instructional materials to be used.

17. Enter the total number or questions on the final exam and make sure that number matches all other areas (General Information Page, exam itself, information on the website).

18. Enter the minimum score to pass the final (60% is the minimum score allowed)

19. Enter the length of time given to the students to complete the exam.

20. Select how the exam is to be administered.

21. Enter the sponsor/schools method for delivering the General Information Page to the students BEFORE they enroll in a course.

22. Explain how the location of the Course and Instructor Evaluation Form (RE 318A) form will be delivered to the students.

Page 3:

Complete all sections of this page (even if the Primary Contact and the Owner/Authorized School Official are the same individual). All sections must be completed.

DOCUMENTS TO SUBMIT WITH THE STATUTORY/PRE-LICENSE APPLICATION

Corporation Documents

A sponsor/school that is a corporation, company or partnership shall maintain good legal standing with the California Secretary of State during any term of course approval. Therefore, with the initial application (and as updates to the entities status occurs) a sponsor/school is required to submit the following with each course application (even if they have or had other courses approved previously by the DRE):

- A Domestic Corporation shall submit the filed *Articles of Incorporation* endorsed by the California Secretary of State.
- A Foreign Corporation shall submit a *Certificate of Qualification* executed by the California Secretary of State.
- A Company or Partnership (whether domestic or foreign) shall submit one of the following documents, issued by the California Secretary of State: *Certificate of Qualification*, *Certificate of Registration*, or *Certificate of Good Standing*.

*Please note- if a sponsor/school's corporation, company or partnership has filed an updated/new version of any of the above documents, it is considered an ownership change which will require the sponsor/school to reapply for all of their courses and have a new sponsor number issued.

Fictitious Business Name Statement (FBNS)

Sponsor/schools operating under a "fictitious business name must submit with each course application, a FBNS that has been filed with the county recorder in the county where the Sponsor maintains their principal place of business or in Sacramento County if the Sponsor does not maintain a place of business in California. This is required even if the sponsor/school has previously had courses approved by DRE.

Please note that if a sponsor/school has filed an updated/new version of the FBNS that will be considered an ownership change which will require the sponsor/school to reapply for all of their courses and have a new sponsor number issued.

Consent to Service of Process (RE 304)

If the school/sponsor does not reside in California, a notarized Consent to Service of Process (RE 304) form must be submitted along with evidence that the entity is permitted by the California Secretary of State is qualified to transact interstate business in the State of California.

Instructional Material

All student instructional material must be submitted. This includes the textbook*, case studies, sample forms, slideshow printout, and/or CD/DVDs to be used in the course. Any material presented via digital media (CD's, DVD's, USB Flash Drive, etc.) **cannot** be accessed by DRE and therefore, a printed version of the contents must be submitted to the Department.

Appropriate reading material of sufficient length to require the student to spend a minimum of 45 hours of study/work in order to complete the course is required. It has generally been found that approximately 450 pages of text/instructional material is equivalent to textbooks offered by a California college or university. All text material should be up to date.

* If using a textbook, please only submit a copy of the textbook's cover, table of contents, and publication page. If this book is unknown to the DRE, a copy of the textbook and certification from a college/university professor in the real estate field is required to be submitted to DRE to certify that the material is equivalent to a college level textbook which would be used at their institution.

Effective January 1, 2024, pursuant to Senate Bill 1495, all real estate practice courses must contain the following course content:

- A component on implicit bias, including education regarding the impact of implicit bias, explicit bias, and systemic bias on consumers, the historical and social impacts of those biases, and actionable steps students can take to recognize and address their own implicit biases.
- A component on federal and state fair housing laws as those laws apply to the practice of real estate. The fair housing component shall include an interactive participatory component, during which the applicant shall role play as both a consumer and real estate professional.

Copyright Authorization

If the sponsor/school is utilizing copyrighted material, a copyright authorization is required from the copyright holder specifying that the material can be used and whom is granted authorization.

Pre-License Instructor Certification (RE 336)

The primary contact for the sponsor/school will complete all of the information on the RE 336 form except for the instructor's signature and the real estate license status question on the very bottom of the form. ***Please note***- all signatures must be original or eSignatures. Digital or rubber-stamp signatures will not be accepted. Appropriate documentation must be submitted to substantiate the instructor's qualifications. (I.e. college diploma, teaching credential, resume, etc.)

All instructors must have credentials issued by the Board of Governors of the California Community Colleges; by a comparable California teacher-credentialing agency; by meeting meet the qualifications established in Sections 53400 et seq. of Title 5; **or** who otherwise evidence their teaching qualifications by education or experience or a combination of the two.

An instructor shall not teach a course if the instructor:

(A) Does not satisfy the criteria in this subdivision.

(B) Has engaged in any violation of Article 24 (commencing with Section 3000) of these regulations or has engaged in conduct which would have warranted the denial of an application for approval or withdrawal of approval of an equivalent course of study.

(C) As a real estate licensee has had that license suspended, revoked or restricted as a result of disciplinary action.

(D) Acted or conducted himself or herself in a manner which would have warranted the denial of his or her application for a real estate license.

Pre-License General Information Page (RE 313 template)

A General Information Page (GIP) must be presented to potential students PRIOR to the student's registration/enrollment into the course. The GIP must present all of the course requirements. Sponsors/schools can utilize the RE 313 to create their GIP or can create their own, making sure to include at minimum the following information for approval:

- Sponsor/School name, address and phone number
- Email and website addresses
- DRE sponsor number
- Course title
- Brief description of the course. For real estate practice courses, indicate whether the course is compliant with SB 1495
- Method of presentation of the course and final exam
- Course hours
- Dates and Location of Course (Live Course Only)
- ALL fees for the course
- Textbook/Instructional Material information
- Refund and Cancellation policy
- Final examination criteria- number and type of questions, allotted time, number of final exams (2 maximum), passing score, and any additional sponsor/school policies and procedures
- DRE Disclaimer Statement-

  This course is approved for pre-license education credit by the California Department of Real Estate. However, this approval does not constitute an endorsement of the views or opinions which are expressed by the course sponsor, instructors, authors, or lecturers.
- Attendance Policy
- Statement on how proof of identity of student is determined:
  - Live Course Identification Statement
  - Correspondence Course Identification Statement
- Online Evaluation Statement indicating how to find the Course and Instructor Evaluation form (RE 318A)
- Course Provider Complaint Statement indicating how to find the Course Provider Complaint form (RE 340)

Please reconcile the GIP page with the application, the course content, the final exam and (if applicable) the website/mobile device app content. Many deficiencies are related to inconsistencies between these items.

Timed Course Outline

A complete course outline or syllabus needs to be submitted indicating the allotted time schedule for the course and the total number of hours. The textbook's "table of contents", along with times allocated for course material and final exam, may be used for this purpose.

Student Final Exam Instructions

A copy of the student's final examination instructions needs to be submitted with the application packet. The school must provide instructions to the students explaining all final examination requirements. This includes but is not limited to the number of questions on the final, the time allocated, passing score, any proctoring instructions, how to proceed if they fail, etc.

Instructor Final Exam Instructions

A copy of the instructor's final examination instructions needs to be submitted with the application packet. The school must provide instructions to the instructor explaining all final examination requirements. This includes but is not limited to the number of questions on the final, the time allocated, passing score, any proctoring instructions, how to proceed if a student fails, etc.

Exam Proctor/Monitor Instructions

Final examinations for a correspondence/internet/mobile device app course may be administered by a proctor/monitor designated by the Sponsor who is not related by blood, marriage, domestic partnership, or any other relationship, i.e. future responsible broker, to the participant taking the examination which might reasonably influence them from properly administering the exam. Proctor/Monitor Instructions must include a certification statement, with signature field confirming that the proctor complied with all examination rules during the administration of the examination.

The student needs to present one of the following forms of photo identification immediately before the administration of the final examination for a correspondence/internet/mobile device app offering.

(a) A valid identification card described in Section 13000 of the California Vehicle Code or any valid photo identification issued by a governmental agency.

(b) Current identification from a recognized real estate related trade organization issued within the immediately preceding five years which bears a photograph, signature and identification number of the participant.

Student Version of the Final Exam(s)

A student version of the final exam exactly as it is presented to the student must be submitted.

Instructor Version of the Final Exam(s)

An instructor's version of the final exam must be submitted. The exam should be marked as "Instructor Version" and must include the answer key with the references in the course material as to where the answers can be located.

Log-in (Internet or Mobile Device App Only)

Any course which is offered online/mobile device app or offers the final examination online/mobile device app will have to submit two logins for DRE to review the online/mobile device app content. A student log-in account and password AND a regulator log-in account and password must be provided for EACH method of offering.

Student Log-in- this account acts as any other student account. It must show all course material and final exam content **exactly** how a student views the material.

Regulator Log-in- this account acts as a student account EXCEPT it should allow the regulator to bypass the student study time requirements. It must show all course information, as well as any assessments and final exam(s) provided to the students.

Course Completion Certificate

Submit a sample of the Course Completion Certificate (RE 311) for each course. Sponsors/Schools can utilize the template certificate RE 311 or the sponsor may create their own and at minimum must include the following information:

- School Name, Address and Phone Number
- Course Title and Course Type. *Real state practice course certificates should indicate that the course is "Compliant with SB 1495"*
- Student Name
- Credit Hours
- Date of Registration and Date of Successful Completion
- Six-Digit Approval number
- Verifier Printed Name, Signature and Phone Number

- Completion Statement:
  Correspondence Statement: *Successfully completed the correspondence/home study course and passed the final exam with a passing score of 60% or better.*
  Live Statement: *Attended a minimum of 90% of the clock hours and successfully completed the live course and passed the final exam with a passing score of 60% or better.*

Continuing Education Courses

General Information

Continuing Education Course approval is required pursuant to Article 2.5 commencing with Section 10170 of Chapter 3 of Part 1 of Division 4 of the California Business and Professions Code. The sponsor/applicant is responsible for compliance with all statutory (Business and Professions Code) and Commissioner's Regulation requirements. Continuing education regulations are contained in form RE 312. Guidelines to qualify continuing education courses to meet B&P Code Section 10153.4 and 10170.5 requirements are contained in form RE 329.

Live/Classroom Courses-

- The offering shall have a minimum of one-clock hour of instruction (each hour no less than 50 minutes in duration).
- Prior to the start of the course, the sponsor shall provide students with the following disclaimer statement:

  "This course is approved for continuing education credit by the California Department of Real Estate. However, this approval does not constitute an endorsement of the views or opinions which are expressed by the course sponsor, instructors, authors or lecturers."
- Students shall be provided with a written course outline that is a narrative outline consisting of not less than three (3) pages per credit-hour (with an average of 200 words per page).
- Students shall be physically present for at least 90% of the course. This does not include time allocated to the administering of a final examination.
- Effective January 1, 2023, all Fair Housing courses must include an interactive participatory component, during which the licensee shall role-play as both the consumer and real estate professional.
- Effective January 1, 2023, a new two-hour Implicit Bias Training course is required as part of the 45 hours of continuing education. Refer to the course guidelines for further information on course content.
- Instructors, conference leaders, lecturers, and others who present a continuing education offering shall meet at least one of the following qualifications:
  - A bachelor's degree in a related field to that in which a person is to teach, from a school listed as an institution of higher learning by the U.S. Department of Education, or from a comparable school of a foreign country.
  - A valid teaching credential or certificate issued by the Board of Governors of the California Community Colleges or by a comparable California teacher-credentialing agency authorizing the holder to teach in the field of knowledge covered in the offering.
  - Three years full-time experience in the applicable field.
  - Any combination of at least three years of full-time experience and college level education in the applicable field.
  - The Commissioner may approve instructors who in his or her judgment meet the criteria for approval or who otherwise evidence their teaching qualifications by education or experience or a combination of the two.
- An appropriate form of final examination as required per Section 3007.3.
- Must, within 15 days of a student's successful completion of the course, deliver a course completion certificate to the student that contains at minimum, the following information*:
  - Department of Real Estate course approval number

- Name of student and DRE License Number
- Course title and credit hours
- Course category
- Course type
- Dates of course registration and completion
- School name, address and telephone number
- Printed name and signature of the verifier
- Certifying Statement- *Attended a minimum of 90% of the clock hours and successfully completed the live course and passed the final exam with a passing score of 70% or better.*

  **The school may include such additional information in this document as it deems necessary*

- Must notify each student that an evaluation form is available on the Department's website for evaluation of courses and instructors.
- Course needs to be completed by student within one year of registration.
- Must maintain records for each student for 5 years for the preparation of a duplicate certificate upon request by a student.

Correspondence/Internet Courses (Including courses presented via Mobile Device App)

- The offering shall have a minimum of one-clock hour of instruction (each hour no less than 50 minutes in duration).
- Prior to the start of the course, the sponsor shall provide students with the following disclaimer statement:

  "This course is approved for continuing education credit by the California Department of Real Estate. However, this approval does not constitute an endorsement of the views or opinions which are expressed by the course sponsor, instructors, authors or lecturers."
- Students shall be provided with a written course outline that is a narrative outline consisting of not less than three (3) pages per credit-hour (with an average of 200 words per page).
- A correspondence course offered via the internet/mobile device app in one or more aspects of the course offering must have a method of control in place to protect the integrity of the exam, ensure by written statement signed under penalty of perjury that the participant enrolled is the person completing the course and ensure the course cannot be completed in less time than the approved credit hours by controlling the participant's navigation through the course content.
- Effective January 1, 2023, all Fair Housing courses must include an interactive participatory component, during which the licensee shall role-play as both the consumer and real estate professional.
- Effective January 1, 2023, a new two-hour Implicit Bias Training course is required as part of the 45 hours of continuing education. Refer to the course guidelines for further information on course content.
- Instructors, conference leaders, lecturers, and others who present a continuing education offering shall meet <u>at least one</u> of the following qualifications:
  - A bachelor's degree in a related field to that in which a person is to teach g, from a school listed as an institution of higher learning by the U.S. Department of Education, or from a comparable school of a foreign country.
  - A valid teaching credential or certificate issued by the Board of Governors of the California Community Colleges or by a comparable California teacher-credentialing agency authorizing the holder to teach in the field of knowledge covered in the offering.
  - Three years full-time experience in the applicable field.

    - Any combination of at least three years of full-time experience and college level education in the applicable field.
    - The Commissioner may approve instructors who in his or her judgment meet the criteria for approval or who otherwise evidence their teaching qualifications by education or experience or a combination of the two.
- Incremental assessments are to be administered to measure a student's mastery of the course content after each logical unit of instruction or chapter within a correspondence or internet course/mobile device app, i.e. case studies, quizzes or other form of exercises. Remediation for the student shall be provided after each assessment has been completed.
- An appropriate form of final examination is required per Section 3007.3.
- Must, within 15 days of a student's successful completion of the course, deliver a course completion certificate to the student that contains at minimum, the following information*:
    - Department of Real Estate course approval number
    - Name of student and DRE License Number
    - Course title and credit hours
    - Dates of course registration and completion
    - School name, address and telephone number
    - Printed name and signature of the verifier
    - Certifying Statement- *Successfully completed the correspondence home/study course and passed the final exam with a score of 70% or better.*
      **The school may include additional information in this document as it deems necessary*
- Must notify each student that an evaluation form is available on the Department's website for evaluation of courses and instructors.
- Course needs to be completed by student within one year of registration.
- Must maintain records for each student for 5 years for the preparation of a duplicate certificate upon request by a student.

APPLYING FOR APPROVAL OF A CONTINUING EDUCATION COURSE

The following items are required when requesting approval for a Continuing Education Course-

- Completed CE Offering Approval Application (RE 315) –OR– CE Offering Renewal Application (RE 314)
- Fee. Please keep in mind that fees are subject to change, so be sure to check DRE's website prior to submitting the course application
- Corporation Documents, if applicable
- Fictitious Business Name Statement, if applicable
- Consent to Service of Process (RE 304), if the school is out of state
- Copies of all student instructional materials and copyright authorizations as necessary
- CE Instructor Certification (RE 335) with supporting documentation
- Continuing Education General Information Page (RE 308 serves as a template)
- Timed Course Outline
- Incremental Assessments with Remediation (*Correspondence/Internet/Mobile Device App Only*)
- Detailed Statement [Per Commissioner's Regulation Section 3007 (h)]
- Student Final Exam Instructions
- Exam Proctor/monitor Instructions
- Student Version of the Final Exam
- Instructor Version of the Final Exam along with corresponding answer key
- Student AND Regulator log-in and password for courses/final exams offered online
- CE Course Completion Certificate (RE 302 serves as a template)
- Record of Attendance (RE 349) (*Live Courses Only*)

CE Offering Approval Application (RE 315)

Please complete the application in full and confirm that the information on this form does not conflict with other information in the packet. Use the information below to help guide in the complete of the form and the packet. Please note- all signatures must be original or eSignatures. Digital or rubber-stamp signatures will not be accepted.

APPLICATION STEP-BY-STEP

Page 1

1A. Enter the DRE Sponsor number if known.

1B. Enter the Name of the Sponsor or School exactly as it will be presented to students.

2. Enter the address of the sponsor/school classroom facility and the phone number of the school where students/the public can contact the sponsor/school.

3. Enter the website address for the sponsor/school and enter the email address where students/the public can contact the sponsor/school.

4. Select the Type of Ownership for this sponsor/school. Please submit the appropriate documentation such as: endorsed, filed *Articles of Incorporation* or *Certificate of Registration* filed with the CA Secretary of State (SOS); Or out-of-state, include *Certificate of Qualification* or *Certificate of Status*.

5. Enter the Primary and Secondary contact information for those who are responsible for the sponsor/school. Contact(s) original signature is required.

6A. Answer if the sponsor/school has had a CE offering approved by the DRE in the past.

6B. If yes to 6A, enter the name of the last course approved.

6C. If yes to 6A, enter the certificate number of the last course approved.

7. Enter the Course Title of the course offering.

8. Answer if the course is being offered in conjunction with any other course providers. If yes, enter the name of the other course provider(s).

9A. Answer if the course is a one-time offering.

9B. If yes to 9A, enter date of one-time offering.

10. Enter the category of the course. (Refer to Course Guidelines form, RE 329).

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11. Enter the method of presentation for the course offering and final exam (11B.). Select if the course will be Live or Correspondence. It cannot be both. If both formats are offered, a separate application packet, including a fee, is needed for both types and two separate approvals will be issued. *(All courses which are not presented live are considered correspondence courses including online and mobile device app courses.)*

12. Enter the number of credit hours requested for the course (whole hours only).

13. a. If the course is a Live offering, enter the minimum attendance required by the school (Commissioner's Regulations require no less than 90%).

b. Indicate if a Sign-In-Out sheet will be utilized to track attendance.

14. a. Enter the number of questions on the final examination. Please make sure this number matches the number on the actual exam and on the General Information Page.

b. Answer if the final exam will be open or closed book.

c. Enter minimum passing score for the final exam. (Commissioner's Regulations require at least 70%).

d. Answer if an alternate final exam will be offered in the event the student fails the initial exam. *Students can only be offered one additional final examination.*

15. a. Answer if the course will be presented in English.

b. Answer if the course will be presenting in any other language.

c. If yes to 15a or 15b., please indicate the language(s) offered.

16. a. Answer if you ever had denial, revocation, restriction or suspension of any course approval, diploma certificate, credential or real estate license.

b. If yes to 16a, please provide the type of action, the date, any license or certificate number and a summary of the circumstances.

17. Provide an explanation of how you are going to provide ~~to~~ the students a copy of the General Information Page prior to enrollment/registration.

18. a. Answer if there will be an interactive participatory component for the course. (Note- effective January 1, 2023, **all** Fair Housing courses must include a participatory component where the licensee roleplays as both the consumer and the real estate professional.

b. If yes, provide details as to how the interactive participatory component will be conducted.

19. Answer whether there will be marketing conducted inside or outside the classroom at any point before or after the course, either by the sponsor or a third party. Please note that there can be no marketing presented DURING the course. Even a display is considered marketing.

b. If yes to 19a, please provide a thorough explanation of how any and all marketing is to be presented and by what parties.

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Please read through the Inspection/Monitoring Procedures carefully as it provides information on Regulations, Laws and DRE procedures related to approved course offerings.

After reading the necessary information, enter:

b. An ORIGINAL signature from the Primary Contact, as well as their contact information.

-AND-

c. An ORIGINAL signature of the Owner/Authorized School Official, as well as their contact information.

**If the Primary Contact and the Owner/Authorized School Official are the same individual, please complete and sign both sections.*

CE Course Renewal Application (RE 314)

Please complete the application in full and confirm that the information on this form does not conflict with other information in the packet. Use the information below to help guide in the complete of the form and the packet. Please note- all signatures must be original or eSignatures. Digital or rubber-stamp signatures will not be accepted.

APPLICATION STEP-BY-STEP

Page 1

COURSE INFORMATION

Enter the current eight-digit DRE Course Number, Expiration Date, Credit Hours, Category and Course Title.

RENEWAL INFORMATION

1. Enter the School/Sponsor's Name, Address, Business Phone Number, primary email address of the school and the public website address of the school.
2. Select the method of presentation for the course offering. If the course is offered in more than one format, a separate application is needed for each type.
3. Select method of presentation for the final exam.
4. Answer if any material changes have been made to the course since it was last approved. A material change is a deviation from or change in presentation format, curriculum, course length, workbooks, texts or syllabi, but not including changes designed exclusively to reflect recent changes in statutes, regulations or decisional law.
5. Answer if the final exam is administered during course hours or in addition to the hours approved for the course. If the exam is administered during the course hours, please list the time allotted for the final exam.
6. Answer if you use picture identification prior to admitting a student to a live course or prior to the final exam for a correspondence or internet/mobile device app course. If the students are not verified by picture ID, explain why and explain how you confirm student identity.
7. Enter the Primary and Secondary contact information for those who are responsible for the sponsor/school. Contact(s) original signature is required.
8. Answer if there have been any approved instructor changes made to the course since it was last approved. A CE Instructor Certification form (RE 335) and substantiation documents must be submitted for all instructors.

Please read the certification section carefully as it provides information on Regulations, Laws and DRE procedures related to approved course offerings.

After reading the necessary information, enter an ORIGINAL signature from the Primary Contact, as well as their contact information.

DOCUMENTS TO SUBMIT WITH ALL CONTINUING EDUCATION APPLICATIONS

Corporation Documents

A sponsor/school that is a corporation, company or partnership shall maintain good legal standing with the California Secretary of State during any term of course approval. Therefore, with each application (and as updates to the entities status occurs) a sponsor/school is required to submit the following (even if they have or had courses approved previously by the DRE):

- A Domestic Corporation shall submit the filed *Articles of Incorporation* endorsed by the California Secretary of State.
- A Foreign Corporation shall submit a *Certificate of Qualification* executed by the California Secretary of State.
- A Company or Partnership (whether domestic or foreign) shall submit one of the following documents, issued by the California Secretary of State: *Certificate of Qualification, Certificate of Registration,* or *Certificate of Good Standing*.

Please note that if a sponsor/school's corporation, company or partnership has filed an updated/new version of any of the above documents that is considered an ownership change which will require the sponsor/school to reapply for all of their courses and have a new sponsor number issued.

Fictitious Business Name Statement (FBNS)

Sponsor/schools operating under a fictitious business name must submit with each course application, even if they have or had other courses approved previously by the DRE, a Fictitious Business Name Statement (FBNS) that has been filed with the county recorder in the county where the Sponsor maintains their principal place of business or in Sacramento County if the Sponsor does not maintain a place of business in California.

Please note that if a sponsor/school has filed an updated/new version of the FBNS, it will be considered an ownership change which will require the sponsor/school to reapply for all of their courses and have a new sponsor number issued.

Consent to Service of Process (RE 304)

If the school/sponsor does not reside in California, a notarized Consent to Service of Process (RE 304) form must be submitted along with evidence that the entity as permitted by the California Secretary of State is qualified to transact interstate business in the State of California.

Instructional Material

All student instructional material must be submitted. This includes any textbooks, case studies, sample forms, slideshow printout, and/or CD/DVDs to be used in the course. Any material presented via digital media (CD's, DVD's, USB Flash Drive, etc.) **cannot** be accessed by DRE and therefore, a printed version of the contents must be submitted to the Department.

Copyright Authorization

If the sponsor/school is utilizing copyrighted material, a copyright authorization is required from the copyright holder specifying that the material can be used and whom is granted authorization.

CE Instructor Certification (RE 335)

The primary contact for the sponsor/school will complete all of the information on the RE 335 form except for the instructor's signature and the real estate license status question on the very bottom of the form. ***Please note***- all signatures must be original or eSignatures. Digital or rubber-stamp signatures will not be accepted. Appropriate documentation must be submitted to substantiate the instructor's qualifications. (I.e. college diploma, teaching credential, resume, etc.)

Instructors, conference leaders, lecturers, and others who present a continuing education offering shall meet at least one of the following qualifications:

1) A bachelor's degree field to that in which a person is to teach, from a school listed as an institution of higher learning by the U.S. Department of Education, or from a comparable school of a foreign country.
2) A valid teaching credential or certificate issued by the Board of Governors of the California Community Colleges or by a comparable California teacher-credentialing agency authorizing the holder to teach in the field of knowledge covered in the offering.
3) Three years full-time experience in the applicable field.
4) Any combination of at least three years of full-time experience and college level education in the applicable field.
5) The Commissioner may approve instructors who in his or her judgment meet the criteria for approval or who otherwise evidence their teaching qualifications by education or experience or a combination of the two.

An instructor shall not teach a course if the instructor:

1) Does not satisfy the criteria in this subdivision.
2) Has engaged in any violation of Article 24 (commencing with Section 3000) of these regulations or has engaged in conduct which would have warranted the denial of an application for approval or withdrawal of approval of an equivalent course of study.
3) As a real estate licensee has had that license suspended, revoked or restricted as a result of disciplinary action.
4) Acted or conducted himself or herself in a manner which would have warranted the denial of his or her application for a real estate license.

Continuing Education General Information Page (RE 308 template)

A General Information Page (GIP) must be presented to potential students PRIOR to registration/enrollment into the course. The GIP must present all of the course requirements. Sponsors/schools can utilize the RE 308 to create their GIP or make sure to include at minimum the following information:

- One year registration information. (i.e.: All offerings shall be completed within one year from the date of registration)
- Sponsor/School name, address, and phone number
- Email and website addresses
- DRE sponsor number
- Course title
- Brief description of the course
- Method of presentation of the course
- Course Category
- Credit hours
- Course Dates/Location (for Live Courses Only)
- ALL fees for the course. Please keep in mind that fees are subject to change, so be sure to check DRE's website prior to submitting the course application.

- Textbook/Instructional Material information
- Refund/Cancellation Policy
- Final examination criteria- number and type of questions, time allotted, number of final exams (2 maximum), minimum passing score, and any sponsor/school policies and procedures
- DRE Disclaimer Statement-
  "This course is approved for continuing education credit by the California Department of Real Estate. However, this approval does not constitute an endorsement of the views or opinions which are expressed by the course sponsor, instructors, authors, or lecturers."
- Attendance Policy
- Statement on how proof of identity is determined:
  - Live Course Identification Statement
  - Correspondence Course Identification Statement
- Examination Regulatory Notes
- Online Evaluation Statement indicating how to find the Course and Instructor Evaluation form (RE 318A)
- Course Provider Complaint Statement indicating how to find the Course Provider Complaint form (RE 340)

Please reconcile the GIP page with the application, the course content, the final exam and (if applicable) the website content. Many deficiencies are related to inconsistencies between these items.

Timed Course Outline

Correspondence and/or Internet/Mobile Device App courses- A complete course outline needs to be submitted indicating the time schedule for the course which includes each topic, subtopic, quizzes and final examination with time for each allocated in minutes.

Live Courses- A complete course outline needs to be submitted indicating the time schedule for the course which includes each topic, subtopic, and final examination with time for each allocated in minutes. Additionally, a narrative outline needs to be submitted consisting of not less than 3 pages per credit hour with an average of 200 words/page.

Incremental assessments (i.e. quizzes and answers for Correspondence/Internet/Mobile Device App)

For Correspondence, Internet and/or Mobile Device App Courses only, please provide copies of the quizzes/assessments AND answers which will be presented after each logical unit of instruction, generally after each chapter. Include a detailed statement of how remediation will be offered to the student after each assessment.

Detailed Statement

For Correspondence/Internet/Mobile Device App Courses only, please provide detailed statements regarding course delivery and assessment procedures. The statements should address the methods in place to ensure students are navigating through the course according to the specified clock hours for the course and the method of control for protecting the integrity of the course's examinations. Refer to Regulation Section 3007(h).

Student Final Exam Instructions

A copy of the student's final examination instructions needs to be submitted with the application packet. The school must provide instructions to the students explaining all final examination requirements. This includes but is not limited to the number of questions on the final, the time allocated, passing score, any proctoring instructions, how to proceed if they fail, etc.

Instructor Final Exam Instructions

A copy of the instructor's final examination instructions need to be submitted with the application packet. The school must provide instructions to the instructor explaining all final examination requirements. This includes but is not limited to the number of questions on the final, the time allocated, passing score, any proctoring instructions, how to proceed if they fail, etc.

Exam Proctor/Monitor Instructions

Final examinations for a correspondence/internet/mobile device app course may be administered by a proctor/monitor designated by the Sponsor who is not related by blood, marriage, domestic partnership, or any other relationship, i.e. future responsible broker, to the participant taking the examination which might reasonably influence them from properly administering the exam. Proctor/Monitor Instructions must include a certification statement, with signature field confirming that the proctor complied with all examination rules during the administration of the examination.

The student needs to present one of the following forms of photo identification immediately before the administration of the final examination for a correspondence/internet offering.

A valid identification card described in Section 13000 of the California Vehicle Code or any valid photo identification issued by a governmental agency. **– OR –**

Current identification from a recognized real estate related trade organization issued within the immediately preceding five years which bears a photograph, signature and identification number of the participant.

Student Version of the Final Exam(s)

A student version of the final exam exactly as it is presented to the student needs to be submitted. The exam should be marked "Student Version".

Instructor Version of the Final Exam(s)

An instructor's version of the final exam needs to be submitted. The exam should be marked as "Instructor Version" and needs to include the answer key with references in the course material where the answers can be located.

Log-in (Internet and Mobile Device App Only)

Any course which is offered online or offers the final examination online/mobile device app will have to submit two log-ins for DRE to review the online content. A student log-in account and password AND a regulator log-in account and password must be provided for EACH method of offering.

Student Log-in- this account acts as any other student account. It must show all course material and final exam content exactly how a student views the material.

Regulator Log-in- this account acts as any other student account EXCEPT it should allow the regulator reviewing the content to bypass the student study time requirements. It must show all course information, any assessments and final exam(s) provided to the students.

Course Completion Certificate

Submit a sample of the Course Completion Certificate (RE 311) for each course. The RE 311 is a template certificate that can be used or the sponsor may create their own, but the certificate must include the following items to be approved:

- School Name, Address and Phone Number
- Course Title and Course Category
- Student Name and DRE License Number
- Credit Hours
- Date of Registration and Date of Successful Completion
- Eight-Digit Approval number
- Verifier Name, Signature and Phone Number
- Completion Statement:

  Correspondence Statement: ***Successfully completed the correspondence/home study course and passed the final exam with a passing score of 70% or better.***

  Live Statement: ***Attended a minimum of 90% of the clock hours and successfully completed the live course, and passed the final exam with a passing score of 70% or better.***

Record of Attendance (RE 349) (Live Courses Only)

A sample copy of a Record of Attendance for the course needs to be submitted only for courses which are offered live. Students must attend 90% of the clock hours for the course in order to qualify for credit. The RE 349 can be utilized, however the sponsor may create their own. The Record of Attendance must include the following items to be approved:

- School Name and DRE Four-digit Sponsor Number
- Course Title and Credit Hours
- Student Names and DRE License Number
- Times In and Out
- Printed Name of the Monitor/Instructor
- Signature of the Monitor/Instructor
- Date of the Class